

Smt Neetu Sharma W/O Krishan Kumar ... vs Krishan Kumar Sharma S/O Shri Niranjana ... on 13 February, 2020

Author: Inderjeet Singh

Bench: Inderjeet Singh

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Writ Petition No. 10403/2019

Smt Neetu Sharma W/o Krishan Kumar Sharma, D/o Shri Kamal Kumar Sharma, Aged About 28 Years, By Caste Brahmin, R/o Khetri At Present R/o Village Bigodna Tehsil Chirawa, District Jhunjhunu (Rajasthan)

---Petitioner

Versus

Krishan Kumar Sharma S/o Shri Niranjana Lal Sharma, Aged About 35 Years, By Caste Brahmin, R/o Ward No. 8, Khetri District Jhunjhunu (Rajasthan)

---Respondent

Connected With S.B. Civil Writ Petition No. 9600/2019 Krishan Kumar Sharma S/o Shri Niranjana Lal Sharma, Aged About 33 Years, By Caste Brahmin, Resident Of Ward No. 8, Khetri District Jhunjhunu Rajasthan.

---Petitioner Versus Smt Neetu Sharma W/o Shri Krishan Kumar Sharma D/o Shri Kamal Kumar Sharma, Aged About 27 Years, By Caste Brahmin Resident Of Khetri At Present Residing At Bigodana Tehsil Chirawa District Jhunjhunu (Raj.)

---Respondent For Petitioner(s) : Mr. Arun Singh Shekhawat For Respondent(s) : Mr. Neeraj Kumar Sharma HON'BLE MR. JUSTICE INDERJEET SINGH Order 13/02/2020

1. These two writ petitions have been separately filed by the petitioners; husband and wife; challenging self same order dated 02.04.2019 passed by the Additional District Judge, Khetri awarding maintenance under Section 24 of the Hindu Marriage Act, 1955 in favour of the wife to the tune of Rs.5,000/- per month.

2. In CWP-10403/2019, the petitioner wife is assailing the order dated 02.04.2019 on the pretext that the amount awarded by the (2 of 4) [CW-10403/2019] learned court below as monthly maintenance ought to have been awarded from the date of filing of the application i.e. 22.5.2015 and not from the date of the order i.e. 02.04.2019 & also that the amount awarded is on lower side while in CWP-9600/2019, the petitioner husband is praying for quashing of the order dated 02.04.2019.

3. Since the parties to the litigation are the same and assailing the self same order dated 02.04.2019,

hence at joint request of counsel for the parties, both the writ petitions have been heard together and are being decided by the present order.

4. Brief facts of the case are that the husband filed an application under Section 13 of the Hindu Marriage Act, 1955 (for short the Act, 1955) before the court below seeking divorce from his wife. During pendency of the proceedings, the wife submitted application under Section 24 of the Act, 1955 on 22.05.2015 seeking monthly maintenance. Reply to the application was filed by the husband on 10.08.2018.

5. The court below after hearing counsel for the parties, granted monthly maintenance under Section 24 of the Act, 1955 in favour of the wife to the tune of Rs.5,000/-, vide order dated 02.04.2019. The order dated 02.04.2019 has been assailed by husband and wife, both in their separate writ petitions as stated here-in-above.

6. Heard counsel for the parties.

7. Counsel appearing on behalf of the wife submitted that the learned court below erred in granting monthly maintenance from the date of passing of the order dated 02.04.2019 while it should have been awarded from the date of filing of the application under (3 of 4) [CW-10403/2019] Section 24 of the Act, 1955 i.e. 22.05.2015. Counsel further submits that the amount awarded by the court below is on lower side, as such, prayed that it may be suitably enhanced.

8. In support of the submissions, counsel relied upon the judgment passed by the Hon'ble Supreme Court in the matter of Jaiminiben Hirenbbhai Vyas & Anr. Vs. Hirenbbhai Ramesbbhendra Vyas & Anr., passed in Criminal Appeal No.2435/2014 decided on 19.11.2014 wherein it has been held as under :-

"In the case before us, the High Court has not given any reason for not granting maintenance from the date of the application. We are of the view that the circumstances eminently justified grant of maintenance with effect from the date of the application in view of the finding that the appellant had worked before marriage and had not done so during her marriage. There was no evidence of her income during the period the parties lived as man and wife. We, therefore reverse the order of the High Court in this regard and direct that the respondent shall pay the amount of maintenance found payable from the date of the application for maintenance. As far as maintenance granted under Section 24 of the H.M. Act by the Courts below is concerned, it shall remain in unaltered."

9. Counsel appearing on behalf of the husband submitted that the amount awarded by the court below as monthly maintenance under Section 24 of the Act, 1955 is on higher side, therefore, prayed for reducing the amount of monthly maintenance. Counsel further submits that the court below was right in its approach in awarding monthly maintenance from the date of the order i.e. 02.04.2019 and not from the date of filing of the application i.e. 22.05.2015.

10. I have heard the counsel appearing on behalf of their respective parties and also gone through the material on record.

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11. In my considered view, since the husband is working in a private firm, therefore, the amount awarded by the court below towards monthly maintenance in favour of the wife, does not appear to be on higher side and so far as awarding it from the date of passing of the order dated 02.04.2019 is concerned, that in my view does not appear to be justified as the application was filed by the wife under Section 24 of the Act, 1955 on 22.05.2015 and the delay is on the part of the husband who lingered on the proceedings by seeking time to file reply and ultimately filed the same on 10.08.2018, as such the amount under monthly maintenance should have been awarded from the date of filing of the application by the wife under Section 24 of the Act, 1955 i.e. 22.05.2015.

12. In that view of the matter, the writ petition filed by the husband being S.B. Civil Writ Petition No.9600/2019 (Krishan Kumar Sharma Vs. Smt. Neetu Sharma) is dismissed and that of the wife being S.B. Civil Writ Petition No.10403/2019 (Smt. Neetu Sharma Vs. Krishan Kumar Sharma) is allowed in the terms that the monthly maintenance is awarded from the date of filing of the application i.e. 22.05.2015 and not from the date of the order dated 02.04.2019 and with this modification in the order dated 02.04.2019, CWP-10403/2019 stands disposed of. A copy of this order be placed in the connected file.

(INDERJEET SINGH), J Arun/118-119 Powered by TCPDF (www.tcpdf.org)